

State vs Hardeep Singh on 1 June, 2026

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IN THE COURT OF SH. SAURABH GOYAL, JMFC-01, SOUTH WEST
DISTRICT DWARKA COURTS, DELHI

State Vs. : Hardeep Singh
E FIR No : 439/2017
U/s : 420 IPC
P.S. : PALAM VILLAGE
CNR NO. : DLSW020156532021

1. Criminal Case No.	:	3556/2021
2. Date of commission of offence	:	2014
3. Date of institution of the case	:	17.03.2021
4. Name of the complainant	:	State
5. Name of accused & parentage	:	Hardeep Singh S/o Sh. Hari
6. Offence complained or proved	:	U/S 420 IPC
7. Plea of the accused	:	Pleaded not guilty
8. Date on which order was reserved	:	29.05.2026
9. Final order	:	Convicted
10. Date of final order	:	01.06.2026

Present : Sh. Vikas Kharb, Ld. APP for state.
Accused is present (through VC)
Ms. Soni Ld. Counsel for accused.

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JUDGMENT

1. Vide this judgment, I seek to dispose of the case of the prosecution filed against the accused Hardeep Singh for having committed the offence punishable U/S 420 of Indian Penal Code, 1861 (hereinafter referred as "IPC").

2. The case of the prosecution, in brief, is that during the year 2014, at WZ-239B, Raj Nagar Part-II, Palam Colony, New Delhi, within the jurisdiction of Police Station Palam Village, the accused dishonestly induced the complainant Smt. Saroj to enter into a Bayana Agreement dated 02.03.2014 in respect of Flat No. F-146, Phase-II, Sector-16B, Dwarka, New Delhi, admeasuring 40 square yards. It is alleged that the accused represented that the said flat belonged to one Smt. Lata Sharma and was capable of being transferred in favour of the complainant, despite knowing that no such flat existed and that he had no lawful authority in respect thereof. Acting upon such representation, the complainant was induced to part with a sum of Rs. 8,00,000/- in cash. It is further alleged that the

accused thereby dishonestly deceived the complainant and caused wrongful loss to her and corresponding wrongful gain to himself, thereby committing the offence punishable under Section 420 IPC.

3. Upon completion of investigation, a charge-sheet was filed before the Court. Cognizance of the offence was taken by the learned predecessor of this Court vide order dated 17.03.2021 and the accused was summoned. After compliance of Section 207 Cr.P.C. and hearing the parties on the point of charge, a formal charge for the St. Vs. Hardeep Singh offence punishable under Section 420 IPC was framed against the accused on 03.06.2022, to which he pleaded not guilty and claimed trial.

4. In order to prove the guilt of accused, the prosecution examined following twelve witnesses:

5. PW-1 Sh. Mohan Dass S/o Late Sh. Dass Ram R/o R7332. F 313, Raj Nagar II Palam Colony, New Delhi aged about 51 years has deposed that Mahesh S/o Subedar Ram Singh who is his neighbour met him in March 2014 in the morning time and told that residential flats will be made available for persons living in slums. These flats would be in Sector 16, Dwarka. Mahesh introduced him to his friend Praveen S/o Sh. Hardeep Singh who assured him that they could arrange the aforesaid flats in Sector 16, Dwarka. He told him that one of his person namely Vinod Kumar is interested in making investment in the aforesaid flats. He along with Mahesh and Vinod went to the house of accused Hardeep in the night time and there one receipt was executed regarding a payment of Rs. 50,000/-. The said amount was given by Vinod Kumar to accused Hardeep Singh and he signed the said receipt as a witness. On 03.03.2014, an agreement was executed in the name of Saroj W/o Sh. Vinod Kumar regarding the flat in the presence of Mahesh Kumar, Vinod Kumar and his son Gaurav and he alongwith accused Hardeep Singh. Further, during the examination of this witness, Ahlmad from the court of Ms. Vinerjeet Kaur, Ld. MM, NI Act, South West Dist. Dwarka court brought the original file of case titled as Saroj Vs. Hardeep Singh CC NO. 4992134/2016 in which the original receipt dated 03.03.2014 is placed St. Vs. Hardeep Singh and shown to the witness on which the witness correctly identified his signatures. Copy of the same is Ex. PW1/A (OSR). The witness deposed that his signatures on the said receipt was obtained after it's execution.

During cross-examination, the witness admitted that he along with Mahendra, Mahesh and Vinod went to village Bindapur for handing over the money with respect to property in question, and he along with Mahendra and Mahesh were standing outside the house, and Vinod, his son, and Hardeep went inside the house of Lata Sharma for giving the money in Bindapur. He admitted that the document EX.PW1/A was not executed in his presence and he signed the document as a witness after the execution of document. He further admitted that amount of 5,00,000 or more was not given in his presence.

6. PW-2 Sh. Mahesh Kumar S/o Sh. Ram Singh R/o H. NO. RZ-228N, Raj Nagar Part II Palam Colony, New Delhi deposed that Sh. Mohan Dass is his friend who introduced him to Sh. Vinod Kumar and he suggested Sh. Mohan Dass to purchase one property which is shown to him by accused Hardeep Singh. Sh. Mohan Dass told him that one person namely Sh. Vinod Kumar is ready to purchase the said property and he arranged a meeting of Sh. Vinod Kumar and Accused Hardeep

Singh. He along with Sh. Vinod Kumar, Sh. Mohan Dass, Sh. Mahender and son of Sh. Vinod Kumar went to the house of one Smt. Lata Sharma who is the seller of the said property and Sh. Vinod Kumar and his son along with Sh. Hardeep Singh went inside the house of Smt. Lata Sharma for giving payment to her. After execution of St. Vs. Hardeep Singh document Ex. PW1/A (OSR), he put his signatures on the same at point B as a witness.

During cross-examination, this witness also admitted that document EX.PW1/A was not executed in his presence and he was made to sign as witness after the execution of document outside the house of Lata Sharma.

7. PW-3 Sh. Gaurav Singhal S/o Sh. Vinod Kumar R/o H.NO. WZ-239B, Raj Nagar II, Palam Village, New Delhi has deposed that in March, 2014. Accused Hardeep Singh told his father to purchase one flat in Sector 19 B, Dwarka, EWS Category. His father gave earnest money of around Rs. 4 lakhs to accused Hardeep Singh. The total cost of the said flat was Rs. 8 lakhs which his father had paid to accused Hardeep Singh. Accused Hardeep Singh had given the papers of the said flat and told his father that the possession of the said flat will be given after 1 year. Thereafter, upon checking the said papers it was found defective and were not prepared through Government body. They asked the accused Hardeep Singh to return their amount of Rs. 8 Lakhs and in lieu of the same he provided them some cheques but upon presentation those cheques got bounced. When they demanded their money back in cash, accused Hardeep Singh refused to give / return the money.

Further this witness has produced one pen drive along with certificate U/s 65 B of Indian Evidence Act containing the transaction in question. The Pen Drive along with certificate U/s 65 B of IEA is Ex. PW3/A (Colly). It is further deposed by the witness that accused has also given them a cheque amounting to Rs. 6,90,000/- which St. Vs. Hardeep Singh got bounced upon presentation with their banker and for the same he had filed a separate case against the accused under the Negotiable Instrument Act. Accused has also issued a receipt for an amount of Rs. 5,25,000/- to them. Accused has also settled the matter with them in the year 2017 before NI Act court but lateron he refused to pay the entire settlement amount to them after giving part payment of Rs. 1 Lakh to them. It is further deposed that again in the year 2024, accused has settled the present matter in this court, however, lateron backed out from the same after paying only Rs. 30,000/- out of the total settlement amount of Rs. 4,75,000/-. This witness correctly identified the accused in the court.

During cross examination, the witness deposed that he had not seen the property in question before agreeing to purchase the same. However, he volunteered to say that he along with his father, four other dealers, including Mahendra visited to see the property. He testified that he along with his father had given 5,25,000 as earnest money to the accused and the receipt of same was issued and prepared by accused in Palam village or nearby. He expressed inability to remember the exact place due to lapse of time. The witness further denied his statement under section 161 CRPC recorded by the police and stated that it does not contain the entire facts of the present case. He further stated that he recorded the video from the mobile phone in the year 2014 and the same was brought to the knowledge of the IO after which the FIR was registered.

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8. PW- 5 Sh. Somanimal Meena, Branch Manager, from Bank of Maharashtra, Janak Puri Branch, New Delhi has deposed that he has brought the summoned record i.e. Account opening Form of accused Hardeep Singh. The Copy account opening Form along with annexure i.e. Customer Information Form of Individual, Ration Card and Electricity bill are exhibited as Ex. PW5/A (OSR). The account opening form along with the annexed documents, of accused Hardeep Singh bears the signatures of Accused Hardeep.

9. PW- 4 Sh. Mahender Kumar, S/o Late Sh. Bhorilal R/o H. NO. 240B, Gali No.7, Near Sudhir Ki Chakkai, Raj Nagar Part II, Palam Colony New Delhi has deposed that he is residing at the aforesaid address along with his family, since late 20 years. Sh. Vinod Kumar is his neighbour, who had purchased one flat in Dwarka Sector 16 in the year 2014 and one bayana receipt was also executed for the same i.e. Ex. PW1/A (OSR) which also bears his signatures at point C as a witness. Sh. Vinod Kumar had not given any payment in his presence. After execution of said Bayana Receipt, his signatures were obtained.

During the trial, this witness was not telling the complete truth and he was declared as hostile by the prosecution and he was allowed to be cross examined by Ld. APP for the state with the permission of the court. During his cross-examination, he denied giving statement dated 25 January 2021, to the I/O. He testified that he had signed the receipt in presence of Vinod Kumar and Hardeep Singh.

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10. PW-6 ASI Prahlad Singh No. 3063 SW, Legal Cell, Vasant Vihar, New Delhi has deposed that on 03.12.2017 he was posted as ASI at PS Palam Village. On that day, in compliance of order dated 28.11.2017 of Hon'ble Court, he examined the complainant and recorded her statement Ex. PW6/A and thereafter, he prepared tehrir /rukka Ex. PW6/B and got the present case FIR registered. After the registration of present case FIR, he obtained the relevant documents i.e. Receipts, Cheques, photocopies of receipt of Delhi Nagar Nigam, letter of Jhuggi Jhopri Settlement Cell, Bayana Papers, which he seized vide memo Ex. PW6/C. He served notice U/s 160 Cr.P.C upon accused Hardeep and to his son Parveen Kumar and he made inquiries from the accused Hardeep and asked about some documents, however, accused Hardeep told him that one another case regarding the same incident is also pending before Hon'ble Dwarka Court pertaining to the same cheque in question. Thereafter, he got transferred from the concerned PS and thus, he handed over the case file to the MHCR PS Palam Village.

11. PW-7 SI Kuldeep Singh NO. D4892, PS Mangol Puri, New Delhi has deposed that on 13.07.2019, he was posted as SI at PS Palam Village. On that day, he examined the complainant and recorded her statement U/s 161 Cr.P.C. On 11.12.2019 he arrested the accused Hardeep Singh vide memo Ex. PW7/A. He was released on bail upon furnishing of bail bonds as he has already been granted anticipatory bail. Thereafter, he interrogated him and prepared the interrogation report Ex. PW7/B. Accused also produced some photocopies of documents which he St. Vs. Hardeep Singh seized vide seizure memo Ex. PW7/C. Thereafter, with the permission of the court, on 16.12.2019, he obtained the specimen signatures and handwriting of accused Hardeep Singh i.e. Ex. PW7/D (Colly) on all the pages. During investigation, he had also collected the account opening form of accused from Bank of

Maharashtra along with other documents. Thereafter, he got transferred from the said PS thus, he handed over the present case File to the MHCR Concerned.

12. PW-8 Inspt. Babu Lal NO. D4624, PG Cell, North District, New Delhi has deposed that on 26.08.2020, he was posted as SI at PS Palam Village. On that day, further investigation of the present case was marked to him. During investigation he served notice U/s 91 Cr.P.C i.e. Ex. PW8/A (Colly), upon the complainant to produce the original documents who informed him that the original documents are annexed in the cheque bouncing case. Thereafter, he moved an application i.e. Ex. PW8/B, to procure the original documents before the court of Ms. Jyoti Nain, Ld. MM, NI Act, South West Dist., Dwarka, New Delhi. Ld. MM directed that FSL officials are allowed to take the photographs of those original documents. Thereafter, on 25.01.2021, he deposited the photocopy of questioned documents, specimen writing and admitted signatures and writing of accused to the FSL. He prepared the chargesheet and filed the same before the court. During further investigation, on 18.03.2021, the FSL Officials visited the premises of Dwarka Courts and took the photographs of the original documents from the court of Ms. Jyoti Nain, Ld. MM, NI St. Vs. Hardeep Singh Act, South West Dist., Dwarka, New Delhi. Later on, he obtained the result from the FSL and filed the same alongwith the supplementary chargesheet with the court.

13. PW- 9 Sh. Vinod Kumar S/o Sh. Asharfi Lal R/O H. No. WZ-239 B, Raj Nagar II, Palam Colony, New Delhi has deposed that he is residing at the aforesaid address along with his family. In the month of March, 2014, one person namely Mohan Dass came to his house and told that somebody is selling the flats at Dwarka Sector 16, which was allotted to Jhuggi Walas and that he can buy those flats. He also told him that accused Hardeep who lives in Kailash Puri, was selling those flats. Thereafter, he along with Mohan Das and Mahesh Kumar went to the house of Accused Hardeep Singh. Accused Hardeep Singh told him that he was employed with DDA and retired from the said job. He also told him that he will also transfer the allotment of flat. Thereafter, on his assurance, he gave an amount of Rs. 50,000/- in cash as booking amount to him for purchase of flat. Thereafter, he again gave Rs. 8,50,000/- in cash to the accused Hardeep Singh for the purchase of flat. Thereafter, the accused did not provide the flat to them and also refused to return their money. During investigation, he submitted the copy of receipt of payment made to the accused i.e. Mark A, copy of bayana Receipt Mark B, copy of allotment slip Mark C, Copy of allotment letter Mark D, copy of provisional eligibility letter Mark E, to the IO.

During the cross-examination, the witness admitted that accused Hardeep had not accompanied him when he went to see the flat in question with Mohan Kumar. He further admitted that he did not enquire from the neighbourhood about the St. Vs. Hardeep Singh ownership of said flat and that he had not seen the ownership documents of the said property. He had further deposed that he had not made any enquiry from the DDA office about the ownership documents of the said flat. He further deposed that the deal was finalized at the house of accused Hardeep for total sale consideration of 10,50,000 in presence of Mahesh and Mohan.

14. PW-10 HC Dinesh No. 2611T, Dwarka Traffic Circle, New Delhi has deposed that on 12.03.2017 he was posted as HC/Duty Officer at PS Palam Village. On that day, ASI Prahlad brought the rukka Ex. PW6/B to him and he made endorsement upon the same i.e. Ex. PW10/A and on the basis of

said rukka, he got registered the present case FIR Ex. PW10/B and also issued the certificate U/s 65 B of Indian Evidence Act i.e. Ex. PW10/C. After the registration of the present case FIR, the copy of FIR along with the original rukka was handed over to ASI Prahlad.

15. The prosecution further examined the complainant Smt. Saroj W/o Sh. Vinod as PW 11 and the testimony of this witness was recorded by the court with the assistance of sign language, interpreter, Miss Manisha Sharma. Witness deposed that in the year 2014, she came in contact with one person namely Sh. Hardeep Singh through her known Sh. Mahesh and Sh. Mohan. She had given Rs. 8 Lakhs to Accused Hardeep Singh for purchase of flat located in Sector 16 B Dwarka but till date neither the flat was given to her nor her money was returned to her. She had given complaint against the accused and the same is Ex. PW6/A. St. Vs. Hardeep Singh It is pertinent to mention here that this witness was having speech problem and therefore, with the permission of the court, Ld APP for the state was allowed to put questions to the witness. During the deposition, the witness admitted that on 02.03.2014, one person namely Sh. Mahesh who was resident of Raj Nagar Part II, Palam Colony and in property business told that there are Govt. Flats available in Sector 16 B Dwarka for public and she expressed interest in buying the flat there, so he introduced her with Hardeep Singh and Praveen Singh, who reside at RZ-26/4A, Indra Park Gali NO. 31. She further admitted that Hardeep told her that he was working in DDA and he can arrange a flat for her at Sector 16 B Dwarka for total consideration amount of Rs.10.5 Lakhs and thereafter, she handed over Rs.8 Lakhs in cash to Hardeep at her residence and she was also given receipt of Rs. 5.25 Lakhs and Bayana Receipt of Rs.1 Lakhs for the same with the assurance that possession of the flat would be handed over by August, 2014. She further admitted that her daughter also approached accused to purchase a flat and she had also given Rs. 8 Lakhs to accused. Accused was correctly identified by this witness in the court.

During the cross examination by Ld. Defence counsel, the witness deposed that her husband had given the amount to the accused in presence of her daughter and that she did not visit the flat in question which the accused promised to transfer in her name. She expressed inability to tell the exact date or year when the amount was given to the accused and asked to when she had paid the first instalment to the St. Vs. Hardeep Singh accused. She testified that the amount shown in video EX.PW3/A was given for purchase of her flat.

16. After examination of all prosecution witnesses, at the request of Ld. APP, PE was closed on 23.03.2026. Thereafter, statement of the accused was recorded on same date U/S 313 Code of Criminal Procedure, 1973 ("Cr.P.C") and witness also opted to lead defence evidence. The accused examined Smt. Manju as DW1 and after examination, Ld. APP for the state mentioned that he wishes to examine one more witness of supplementary chargesheet.

17. Thereafter, PW Miss Smita Sinha was called for examination and she has deposed that she is working in the department of Documents, FSL, Rohini, since the year 2019. The report bearing NO. SFSLDLH/884/QD/53/21 dated 31.03.2021 i.e. Ex. PW12/A (Colly) was prepared by her and the same bears her signatures and stamp at Point A. She had prepared the said report with the assistance of Ms. Priya Shrivastava, SA (documents) and Ms. Bhawna Varshney, SSA (photo) took the photographs of the original documents under the supervision of Sh. Prakash Chandra, JF/ACE

(Photo) which they analyzed /examined. After detailed examination of the questioned documents, she had prepared the above said report and gave her expert opinion.

18. During cross-examination, the witness admitted that as per her report, it was not possible to express opinion over question signatures and writing after comparing them with sample signatures and writing as well as admitted signatures and writing.

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19. Subsequently, the Prosecution evidence was closed at request of Ld. APP for the state and supplementary statement of accused u/s 313 Cr.P.C was recorded on 09.04.2026. The accused did not appear himself in the witness box, however, the testimony of two defence witnesses were recorded.

20. DW-1/Mrs. Manju W/o Sh. Rajesh Kr. R/o WZ 152, Raj Nagar-II Palam Colony, New Delhi admitted that she knew accused Hardeep since 2008 when she used to work in Dada Dev Hospital where he used to visit and become her friend and they are known to each other since 2008. Later on, she came to know that a false case has been lodged by the complainant against the accused and she further deposed that accused is a social worker and running an Association namely Manav Adhikar Sangthan and she is associated with the said organization and she never heard that he had committed any offence. She further deposed that the present FIR has been lodged on the false complaint by the complainant on the behest of her husband and she misused some documents.

During cross-examination, the witness denied seeing any of the complainant in person. She denied the suggestion that in the year 2014, the accused Hardeep after meeting the complainant entered into a Bayana agreement dated 02.03.2014 regarding the property in question by misrepresenting that the said flat belong to Lata Sharma, while there was no such flat in existence and accused dishonestly induced the complainant to pay cash to the tune of Rs. 8,00,000/-.

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21. DW-2 Statement of Sh. Arun Kumar S/o Sh. Shyam Sunder Kumar R/o H. NO. RZ-26, P4A, Gali No31, Indira Park, Mangal Bazar, Palam Village, New Delhi deposed that he knew the accused Hardeep since last 10-12 years. He is a social worker and he heard about one lady namely Smt. Saroj who lodged a false complaint case against the accused Hardeep. He admitted that he does not know if the accused is involved in property dealing or he has cheated any amount from anyone. He further testified that except the complaint made by Smt. Saroj, he had not heard about any complaint or criminal cases against the accused Hardeep. To best of his knowledge the accused is a good person and very social. During cross-examination, the witness deposed that they have not seen the complainant, Saroj and Vinod or their family members in person.

22. Thereafter, the defence evidence was closed and matter proceeded for final arguments. The Ld. APP urged that testimony of material witnesses have remained unchallenged in the cross-examination and there is no reason to doubt their testimonies. The Ld. Counsels for the

accused, on the other hand, argued that there is no evidence against the accused. It is further argued that the prosecution has not been able to prove the guilt of the accused persons beyond reasonable doubt. Hence, benefit of doubt must be given to the accused.

23. I have heard the arguments advanced by Ld. APP for the State and Ld. Counsel for the accused. I have carefully perused the entire record as well as the testimonies of the witnesses examined before the Court.

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24. The accused Hardeep Singh is facing trial for the offence punishable under Section 420 IPC. In order to establish the offence of cheating, the prosecution is required to prove that the accused dishonestly induced the complainant to part with property or money by deception and that such dishonest intention existed from the inception of the transaction.

25. In the present case, the prosecution has consistently alleged that the accused represented himself as a person capable of arranging transfer/allotment of a flat situated at Sector 16B, Dwarka and induced complainant Saroj and her family members to part with huge sums of money on the false assurance that possession of the said flat would be handed over to them. The evidence led by the prosecution, when read cumulatively, clearly establishes the ingredients of the offence under Section 420 IPC beyond reasonable doubt.

26. PW-11 complainant Smt. Saroj is the star witness of the prosecution. She categorically deposed that in the year 2014 accused Hardeep Singh, through intermediaries Mahesh and Mohan, approached her and represented that he was working in DDA and could arrange a government flat in Sector 16B, Dwarka. She specifically stated that relying upon the assurance of the accused, she paid an amount of Rs.8 lakhs to him. She further deposed that the accused neither handed over possession of the flat nor returned the money. Her testimony further reveals that later on she came to know that the accused persons were duping innocent persons on the St. Vs. Hardeep Singh pretext of allotment of DDA flats. The witness remained steadfast on all material particulars during her testimony.

27. The testimony of PW-11 finds substantial corroboration from PW-9 Vinod Kumar, husband of the complainant. PW-9 deposed that accused Hardeep Singh represented himself as a retired DDA employee and assured him that he would get the allotment transferred in their favour. Acting upon such representation, he paid Rs.50,000/- as booking amount and subsequently paid approximately Rs.8.5 lakhs to the accused. He further stated that despite receiving the money, the accused neither transferred the property nor returned the amount. His testimony clearly establishes inducement, payment of money and subsequent dishonest conduct of the accused.

28. The defence has attempted to argue that the complainant party did not verify ownership documents from DDA or the neighbourhood before entering into the transaction. However, such omission on the part of the complainant cannot absolve the accused of criminal liability once deception and dishonest inducement are established. In ordinary human conduct, purchasers often

rely upon representations made by persons claiming expertise or authority in property matters. In the present case, the accused projected himself as a retired DDA employee capable of arranging allotment and thereby gained the confidence of the complainant party.

29. PW-3 Gaurav Singhal, son of the complainant, has also materially supported the prosecution case. He specifically deposed that accused Hardeep Singh induced his father to purchase a flat in Sector 16B, Dwarka and received approximately Rs.8 St. Vs. Hardeep Singh lakhs from them. He further stated that the accused subsequently issued cheques towards repayment, which got dishonoured. The conduct of the accused in issuing cheques after receiving the amount assumes significance and constitutes an incriminating circumstance pointing towards acknowledgment of liability.

30. The testimony of PW-3 also gains strength from the electronic evidence Ex. PW3/A (Colly), i.e., the video recording produced before the Court along with certificate under Section 65-B of the Indian Evidence Act. The said video was played in Court during the testimony of PW-11. In the said video, the accused can clearly be seen receiving cash from the complainant side. The complainant and her daughter are also visible in the video. It is audible that an amount of Rs.1.3 lakhs was being handed over to the accused in cash. This electronic evidence lends strong corroboration to the prosecution case regarding monetary transactions between the parties.

31. The defence has questioned the admissibility and reliability of the electronic evidence. However, the prosecution has duly produced certificate under Section 65-B of the Indian Evidence Act. The video evidence therefore remains admissible and relevant.

32. PW-1 Mohan Dass and PW-2 Mahesh Kumar have also corroborated the prosecution version regarding the transaction and execution of documents. Both these witnesses deposed that accused Hardeep Singh was dealing with the complainant side regarding allotment of the flat and that the bayana receipt Ex. PW1/A was executed in St. Vs. Hardeep Singh relation thereto. Merely because they stated that they signed the document after execution does not demolish the prosecution case. Their testimonies still establish that the transaction was indeed taking place under the supervision and representation of the accused.

33. PW-4 Mahender Kumar partially turned hostile, however, even his testimony is not wholly effaced from the record. It is settled law that testimony of a hostile witness is not to be discarded in toto and the portion corroborating the prosecution case can certainly be relied upon. PW-4 admitted his signatures on the bayana receipt Ex. PW1/A and acknowledged the transaction relating to the flat. His testimony therefore lends additional assurance to the prosecution story.

34. The documentary evidence placed on record further strengthens the prosecution case. The bayana receipt Ex. PW1/A, copies of allotment-related documents Mark C to Mark E and the receipts of payments collectively show that the accused had projected existence and transferability of the alleged flat to the complainant party.

35. Significantly, the accused failed to produce any credible material showing that the alleged flat transaction was genuine or that he was legally authorized to transfer such flat. No documentary evidence was produced by the accused to show lawful authority or entitlement in respect of the alleged property. The false representation regarding ability to transfer the property therefore stands established.

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36. The defence has emphasized that the FSL expert PW-12 could not give a definite opinion regarding signatures. However, the inability of the expert to furnish conclusive handwriting opinion does not weaken the prosecution case materially, particularly when the transaction itself stands independently established through oral as well as electronic evidence. Expert evidence is merely corroborative in nature and not substantive evidence.

37. The conduct of the accused subsequent to the transaction is also highly incriminating. The issuance of cheques which later got dishonoured, repeated settlements before courts, and partial payments made by the accused clearly indicate acknowledgment of liability. Such conduct is inconsistent with innocence and strongly supports the prosecution case that the accused had unlawfully retained the complainant's money.

38. The defence witnesses DW-1 and DW-2 merely deposed regarding the good character of the accused and their personal opinion that he is a social worker. Neither of these witnesses had any direct knowledge regarding the transaction in question. Their testimonies are therefore of no assistance to the defence and do not create any dent in the otherwise cogent prosecution evidence.

39. Minor inconsistencies appearing in the testimonies of witnesses regarding exact dates, place of execution or mode of payment are natural due to lapse of considerable time and do not affect the core substratum of the prosecution case. It is St. Vs. Hardeep Singh settled law that minor discrepancies which do not go to the root of the matter are liable to be ignored.

40. The prosecution evidence, when appreciated holistically, establishes the following circumstances beyond reasonable doubt that the accused represented himself capable of arranging allotment/transfer of a DDA flat and relying upon such representation, the complainant party paid substantial amounts to the accused. The accused issued receipts and documents in relation thereto and the accused failed to hand over possession of the alleged flat and the accused subsequently issued cheques towards repayment which got dishonoured.

41. The cumulative effect of the above evidence leaves no room for doubt that the accused dishonestly induced the complainant to part with money by deception. The dishonest intention of the accused is evident from the false representations made by him and his subsequent conduct.

42. It is a settled proposition of criminal law that the prosecution is required to prove its case beyond reasonable doubt and not beyond all possible doubt. In the present case, the prosecution has successfully discharged its burden through cogent oral, documentary and electronic evidence.

Accordingly, this Court holds accused Hardeep Singh guilty for the offence punishable under Section 420 IPC. Accused Hardeep Singh is hereby convicted for the offence punishable under Section 420 IPC.

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43. Let the convict be heard separately on the point of sentence on some other day.

Announced in the open court on
this day i.e. 1st June, 2026

SAURABH GOYAL
GOYAL
(Saurabh Goyal)
JMFC-01 South West District, Dwarka,
New Delhi

GOYAL
Date: 2026.06.01
15:36:50 +0545

It is certified that this judgment contains 22 pages and each page bears my signatures. SAURABH Digitally signed by SAURABH GOYAL GOYAL (Saurabh Goyal) Date: 2026.06.01 15:36:54 +0545 JMFC-01 South West District, Dwarka, New Delhi St. Vs. Hardeep Singh